

		Accordingly, the court GRANTS Defendant's motion as to George, Jack and John Saba's Requests for Admissions, set one. The court limits each Plaintiff to 75 requests for admissions (a maximum of 225 requests in total). <u>Sanctions</u> The court DENIES Defendant's and Plaintiffs' requests for sanctions. (See <i>Mattco Valley Forge v. Arthur Young & Co.</i> (1990) 223 Cal.App.3d 1429, 1437 [court's discretion to deny sanctions upon mixed results].) Defendant shall give notice.
4	Nguyen v. Le	Defendant Holly Ngo's Special Motion to Strike Under CCP §425.16 is DENIED. Defendant's requests for judicial notice are GRANTED. Plaintiffs Thang Dinh Nguyen, Ph.D. and Boat People SOS, Inc.'s evidentiary objections to the Declaration of Defendant Holly Ngo are OVERRULED. Plaintiff's evidentiary objections to the Declarations of Le Xuan Khoa and Hanh Tran, which were submitted with Defendant's Reply brief, are SUSTAINED. <u>Standard for Anti-SLAPP Motion</u> Under the anti-SLAPP statute, "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." (Code Civ. Proc., § 425.16, subd. (b)(1); <i>Olson v. Doe</i> (2022) 12 Cal.5th 669, 678) "The moving party 'must establish that the challenged claim arises from activity protected by section 425.16'; if the moving party does so, 'the burden shifts' to the nonmoving party 'to demonstrate the merit of the claim by establishing a probability of success.' [Citation.]" (<i>Olson v. Doe</i> (2022) 12 Cal.5th 669, 678; <i>Wilson v. Cable News Network, Inc.</i> (2019) 7 Cal.5th 871, 884.) "To succeed in opposing a special motion to strike, the nonmoving party must 'demonstrate both that the claim is legally sufficient and that there is sufficient evidence to establish a prima facie case with respect to the claim.' [Citation.] '[C]laims with the requisite minimal merit may proceed.' [Citation.] The moving party prevails by 'defeat[ing]' the 'claim as a matter of law' [citation] in 'a summary-judgment-like procedure' [citation]." (<i>Olson v. Doe</i> (2022) 12 Cal.5th 669, 679; <i>Wilson v. Cable News Network, Inc.</i> (2019) 7 Cal.5th 871, 884.) "If the plaintiff fails to meet that burden, the court will strike the claim." (<i>Wilson v. Cable News Network, Inc.</i> (2019) 7 Cal.5th 871, 884.)

Defendant Did Not Establish the Challenged Claim Arose From Protected Activity

" 'Initially, the moving defendant bears the burden of establishing that the challenged allegations or claims "aris[e] from' protected activity in which the defendant has engaged. [Citations.]' [Citation]" (*Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871, 884; see *Smith v. Adventist Health System/West* (2010) 190 Cal.App.4th 40, 50 [protected activity is defined as an act in furtherance of the right of petition or free speech].)

"As used in this section, 'act in furtherance of a person's right of petition or free speech under the United States or California Constitution in connection with a public issue' includes: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest." (Code Civ. Proc., § 425.16, subd. (e).)

While section 425.16 does not define "an issue of public interest," " '[i]n each case where it was determined that a public issue existed, "the subject statements either concerned *a person or entity in the public eye* [citations], conduct that could directly affect a large number of people beyond the direct participants [citations] or a topic of widespread, public interest [citation]." ' [Citations.]" (*Kieu Hoang v. Phong Minh Tran* (2021) 60 Cal.App.5th 513, 527.)

[T]he Legislature, when enacting section 425.16, expressed in the statute's preamble a desire "to encourage continued participation in matters of public significance" [citation] does not imply the Legislature intended to impose, in the statute's operative sections, an across-the-board "issue of public interest" pleading requirement. Construing clauses (1) and (2) of section 425.16, subdivision (e) as lacking such a requirement does not diminish their effectiveness in encouraging participation in public affairs. Any matter pending before an official proceeding possesses some measure of "public significance" owing solely to the public nature of the proceeding, and free discussion of such matters furthers effective exercise of the petition rights section 425.16 was intended to protect. The Legislature's stated intent is best served, therefore, by a construction of section 425.16 that broadly encompasses participation in official proceedings, generally, whether or not such participation remains strictly focused on "public" issues.